

Court No. - 3

Case :- WRIT - C No. - 7610 of 2022

Petitioner :- Mehboob

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mukesh Joshi,Rahul Saxena

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondents and Sri Rajesh Yadav, learned counsel for respondent nos. 2 and 3.

This writ petition has been filed praying for the following reliefs:

"(i) To issue a writ, order or direction in the nature of certiorri quashing the recovery citation dated 24.1.2022 issued by the respondent no.4 (Annexure-3 to the writ petition)."

Learned counsel for the respondent nos. 2 and 3 on instructions states that the petitioner may submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, which shall be considered and decided by the respondent no.3 by a speaking and reasoned order in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of the Supply Code, 2005 within three weeks alongwith a copy of this order. In the event such an objection is submitted within the stipulated period, the same shall be decided by the respondent no.3/competent authority in accordance with law by a speaking and reasoned order after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 12.4.2022

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